

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JAHNICE HURDLE,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER MICHAEL
KUTNY (SHIELD #7751), POLICE OFFICER BRIAN
GRANT (SHIELD #14907), and POLICE OFFICER
"JOHN DOE,"(whose name and shield number is
unknown),

Defendant(s).

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action
and to serve a copy of your answer, or, if the complaint is not served with this summons,
to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the
service of this summons, exclusive of the day of service (or within thirty (30) days after
the service is complete if this summons is not personally delivered to you within the State
of New York); and in case of your failure to appear, judgment will be taken against you
by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
November 21, 2016

Yours, etc.

LAW OFFICE OF IKE DIBIA



BY: Ike Dibia
Attorney for Plaintiff(s)
801 Franklin Avenue
Brooklyn, New York 11238
(718) 230-1517

To:

The City of New York
c/o Corporation Counsel

City of New York Law Department
100 Church Street
New York, NY 10007

P.O. MICHAEL KUTNY
76th Police Precinct
191 Union Street
Brooklyn, NY 11231

P.O. BRIAN GRANT
76th Police Precinct
191 Union Street
Brooklyn, NY 11231

P.O. "JOHN DOE"
76th Police Precinct
191 Union Street
Brooklyn, NY 11231

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JAHNICE HURDLE,

Index No.:

VERIFIED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER MICHAEL
KUTNY (SHIELD #7751), POLICE OFFICER BRIAN
GRANT (SHIELD #14907), and POLICE OFFICER
“JOHN DOE,”(whose name and shield number is
unknown),

Defendants.

-----X

JAHNICE HURDLE, by her attorneys, LAW OFFICE OF IKE DIBIA,
respectfully alleges as follows:

1. At all times mentioned, Plaintiff JAHNICE HURDLE was and still is a resident of Queens County, City and State of New York.
2. At all times mentioned, Defendant CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. Upon information and belief, at all times mentioned, Defendants POLICE OFFICER MICHAEL KUTNY (SHIELD #7751), POLICE OFFICER BRIAN GRANT (SHIELD #14907), and POLICE OFFICER “JOHN DOE”, were and are police officers of the Defendant CITY OF NEW YORK, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, CITY OF NEW YORK.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

4. All conditions precedent to filing of this action have been complied with; on December 23, 2015, within ninety days after the claim alleged in this complaint arose, a written notice of claim, sworn to by the Plaintiff, was served upon the Defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the Supreme Court. The said Notice of Claim was assigned claim number 2016PI001053.

5. At least thirty days have elapsed since the service of the notice of claim, and adjustment or payment of the claim has been neglected or refused.

6. This action, pursuant to New York State and City Laws, has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

7. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50 –H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.

AS AND FOR A FIRST CAUSE OF ACTION: ASSAULT AND BATTERY

8. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "7" as if set forth at length herein.

9. On or about November 24, 2015, at approximately between the hours of 12:30 p.m. and 1:00 p.m. in the vicinity of Hoyt Street, at or close to its intersection with Butler Street, County of Kings, and State of New York the Plaintiff was placed in

apprehension of imminent bodily harm by the Defendants in their capacity as police officers.

10. On or about November 24, 2015, at approximately between the hours of 12:30 p.m. and 1:00 p.m. in the vicinity of Hoyt Street, at or close to its intersection with Butler Street, County of Kings, and State of New York the Defendants, in their capacity as police officers, caused the Plaintiff to be confined or restrained.

11. On or about November 24, 2015, while apprehending Plaintiff, the Defendant police officers, while within the scope of their employment of Defendant CITY OF NEW YORK Police Department, attacked, hit, beat, punched and otherwise assaulted and battered the Plaintiff.

12. The Plaintiff was thereafter thrown face down and forcefully restrained on the ground. The defendant police officers began questioning and interrogating the Plaintiff and made threatening gestures and statements to the Plaintiff so as to place the plaintiff in fear of immediate bodily harm.

13. All of the actions of the police officers were willful, intentional and unwarranted, without any provocation or just cause within the meaning of Penal L. §35.30.

14. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION: FAILURE TO INTERVENE
UNDER 42 U.S.C. § 1983

15. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs “1” through “14” as if set forth at length herein.

16. Each and every individual defendant had an affirmative duty to intervene on Plaintiff's behalf to prevent the violation to her constitutional rights, as more fully set forth above.

17. The individual defendants failed to intervene on Plaintiff's behalf to prevent the violation of her constitutional rights, despite having had a realistic and reasonable opportunity to do so.

18. As a consequence of said defendants' actions, Plaintiff suffered loss of liberty, personal injuries, humiliation, mental anguish, depression, and her constitutional rights were violated. Plaintiff hereby demands compensatory damages and punitive damages in the amount of to be determined at trial, against each of the defendants', individually and severally.

AS AND FOR A THIRD CAUSE OF ACTION: CIVIL RIGHTS VIOLATION UNDER
42 U.S.C. § 1983

19. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "18" as if set forth at length herein.

20. On or about November 24, 2016, the Defendant police officers apprehended the Plaintiff, handcuffed her, and threw the Plaintiff face down to the ground.

21. Prior to the arrest of the Plaintiff, the Defendants conspired to and did deprive the Plaintiff of her life and liberty in violation of her rights as guaranteed by the Fourth and Fifth Amendments to the United States Constitution. The Defendants also deprived the Plaintiff of her right not to be deprived of life and liberty without due process of law as guaranteed by the Fourth and Fifth Amendments of the United States

Constitution. All of the Plaintiff's rights were violated by defendants by use of brutal, excessive, unreasonable and unnecessary physical force upon the Plaintiff.

22. Upon information and belief, defendants POLICE OFFICER MICHAEL KUTNY (SHIELD #7751), POLICE OFFICER BRIAN GRANT (SHIELD #14907), and POLICE OFFICER "JOHN DOE" utilized this method of detaining and apprehending Plaintiff pursuant to a policy and procedure of Defendant CITY OF NEW YORK, which policy and procedure authorized such a method of apprehension in all cases where individuals attempt to evade arrest without consideration of the degree or nature of the wrongful conduct for which the subject is allegedly sought and without regard to the constitutional rights of life, liberty and due process of the individual.

23. As a proximate result of the conduct of the Defendants, the Plaintiff suffered mental, physical and emotional pain and suffering and was deprived of her United States Constitutional rights of life, liberty and due process, all to her damage in an amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction over this cause of action.

24. By reason of the willful, reckless and malicious conduct of the Defendants, the Plaintiff is entitled to recover punitive damages.

AS AND FOR A FOURTH CAUSE OF ACTION: MONELL CLAIM

25. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "24" as if set forth at length herein.

26. Defendant CITY OF NEW YORK has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized

arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

27. Defendant, CITY OF NEW YORK was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest or search warrant, said police officers of the City of New York are not to arrest individuals such as the plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

28. Defendant, CITY OF NEW YORK is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

1. Excessive force cannot be used against an individual who does not physically resist arrest.
2. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

29. The foregoing acts, omissions and systemic failures are customs and policies of the CITY OF NEW YORK which caused the police officers to commit an assault/battery to Plaintiff's person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A FIFTH CAUSE OF ACTION

30. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs “1” through “29” as if set forth at length herein.

31. Defendant CITY OF NEW YORK was negligent in that prior to and at the time of the acts complained of herein due to the prior history of the Police Officer defendants, knew or should have known of the bad disposition of said defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not use excessive force during the arrest process.

AS AND FOR A SIXTH CAUSE OF ACTION

32. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs “1” through “31” as if set forth at length herein.

33. Defendant police officers were acting as agents of Defendant CITY OF NEW YORK (through its Police Department) when they attacked, hit, beat, punched and otherwise assaulted and battered plaintiff. Therefore under the common law principal/agent *respondent superior* rule, Defendant CITY OF NEW YORK is jointly and severally liable with Defendant Police Officers for the general and specific damages sustained by Plaintiff, as well as for the attorneys’ fees and the costs and disbursements of the action.

34. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damage herein before stated.

WHEREFORE, Plaintiff demands judgment against the Defendants, individually and severally as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this Court deems just an appropriate.

Dated: Brooklyn, New York
November 21, 2016

Yours etc.

LAW OFFICE OF IKE DIBIA



By: Ike Dibia
Attorney for Plaintiff
801 Franklin Avenue, Ground Floor
Brooklyn, New York 11238
(718) 230-1517

VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF KINGS)

I, Ike Dibia, an attorney duly admitted to practice law in the Courts of the State of New York, affirms the following under the penalties of perjury:

I am the attorney of record for the plaintiff, JAHNICE HURDLE. I have read the annexed Complaint, know the contents thereof, and know the same to be true to my knowledge, except as to those matters therein which are stated to be alleged upon information and belief, and as to those matters therein not stated upon personal knowledge, are stated upon information and belief and based upon documents and information contained in counsel's file.

The reason I make this Verification instead of the defendant is that the defendant does not reside in the County where I maintain my office.

I affirm that the foregoing statements are true under the penalties of perjury.

Dated: Brooklyn, New York
November 21, 2016



Ike Dibia
Attorney for Plaintiff
JAHNICE HURDLE
801 Franklin Avenue
Brooklyn, New York 11238
(718) 230-1517

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.

JAHNICE HURDLE,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER MICHAEL
KUTNY (SHIELD #7751), POLICE OFFICER BRIAN
GRANT (SHIELD #14907), and POLICE OFFICER
"JOHN DOE," (whose name and shield number is
unknown),

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF IKE DIBIA
Attorney(s) for Plaintiff JAHNICE HURDLE
801 Franklin Avenue
Brooklyn, New York 11238
(718) 230-1517

Pursuant to 22 NYCRR130-1.1, the undersigned, an attorney admitted to
practice in the courts of New York State, certifies that, upon
information and belief and reasonable inquiry, the contentions
contained in the annexed document are not frivolous.
Dated: November 21, 2016


Ike Dibia

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 200_

Attorneys for Defendant(s)
